

Ram Prakash v. State of U.P.

Allahabad High Court · Division Bench · 5 March 2020 · Writ-C No. 8327 of 2020 · WRIT - C No. - 8327 of 2020 · **Writ disposed; Executive Engineer to consider clause 6.14 instalment representation in accordance with law.**

HEADNOTE

Where recovery of electricity dues is underway and the consumer accepts the full demand and seeks payment by instalments under clause 6.14 of the Electricity Supply Code, 2005, the High Court may dispose of the writ by directing the Executive Engineer to consider a representation for that facility and pass appropriate orders in accordance with law within a stipulated time, without itself granting instalments.

FACTUAL SUMMARY

Recovery of electricity dues was initiated against Ram Prakash. He did not dispute the demand: he accepted the entire liability and said he would pay if instalments were fixed under clause 6.14 of the Electricity Supply Code, 2005. He petitioned the Allahabad High Court (Writ-C No. 8327 of 2020) against the State of Uttar Pradesh and the licensee, seeking that facility. Counsel for the petitioner, the State, and the distribution company were heard on 5 March 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where recovery of electricity dues has been initiated and the consumer accepts the entire liability and seeks payment by instalments under clause 6.14 of the Electricity Supply Code, 2005, the writ court may dispose of the petition by directing the Executive Engineer to consider a representation for that facility and pass appropriate orders in accordance with law within a stipulated time; the court does not itself fix the instalments. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The petitioner accepted the electricity-dues liability in full and sought instalments under clause 6.14; the Court directed the Executive Engineer to consider that representation in accordance with law rather than itself granting the facility. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS UNDER CLAUSE 6.14, AND ON WHAT TERMS

Left to the Executive Engineer to consider the representation and pass orders in accordance with law. ¶ 1